

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LISA LEE,
Petitioner

VS.

JOSEPH LEE,
Respondent

) Case Number: FMS-20-387324
)
) Hearing Date: July 23, 2026
)
) Hearing Time: 9:00 AM
)
) Department: 403
)
) Presiding: VISITING JUDGE JANET FRANGIE
)

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER,
NEUROPSYCHOLOGICAL EVALUATION

TENTATIVE RULING

There is no Proof of Service on file indicating that Petitioner Lisa Lee served the ex parte Request for Order filed 7/10/26 on Respondent Joseph Lee as she was ordered to do by 7/15/26. Accordingly, the 7/23/26 hearing is hereby VACATED.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MONIKA MASTALEREK,

Petitioner

VS.

DANIEL LOBERT,

Respondent

) Case Number: FDI-23-798868

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: VISITING JUDGE JANET FRANGIE

OTHER REVIEW HEARING; OTHER REVIEW HEARING; REQUEST FOR ORDER: CHILD
SUPPORT, PROPERTY CONTROL, PAYMENT OF RENT AND HOUSEHOLD EXPENSES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) On 12/4/25, the Court modified the prior 7/15/25 support order and ordered Father to pay Mother \$2,036 per month in temporary monthly spousal support and \$1,314 in guideline monthly child support. The Court also ordered Father to continue to share equally the monthly rent obligation so long as both parties continue to reside in the residence, issued orders regarding child support add-on expenses, and maintained its prior work search order for Mother. See Findings and Order After Hearing (FOAH) filed 12/24/25.
- 2) On 2/4/26, the Court issued a Restraining Order After Hearing (ROAH) that expires 2/4/29 wherein Mother is the protected party, and Father is the restrained party. Father was ordered to move out of the residence.
- 3) On 4/26/26, the Court ordered Father to have unsupervised parenting time with the minor child every other week on Saturdays and Sundays from 10 am to 6 pm plus Thursday and Friday

1 evenings from pick-up after school to 8 pm on opposite weeks. See FOAH filed 5/5/26. A review
2 hearing on child custody and visitation was set for 7/23/26.

- 3 4) On 4/24/26, the Court denied Mother's request for emergency relief pending hearing set on
4 6/23/26. Mother sought orders requiring Father to: (a) pay his portion of the rent directly to the
5 landlord (and/or not deduct it from Mother's support payment unless the rent has been paid); (b)
6 continue paying support as ordered; (c) continue contributing to Mother's household expenses;
7 and (d) register and use Our Family Wizard (OFW) for communications regarding the minor
8 child.
- 9 5) On 6/12/26, Mother filed a Supplemental Declaration asserting that Father resumed paying his
10 share of her rent after being served with the ex parte Request for Order. Mother states that the
11 financial issues were temporarily resolved, but the communication issue remains ongoing. Mother
12 reiterates her request to use OFW for communications regarding the minor child.
- 13 6) On 6/17/26, Father filed a Supplemental Declaration refuting Mother's position. Father reasserts
14 that the Court should deny Mother's request for OFW. Father states the restraining order includes
15 a provision for brief, peaceful communication about the court-ordered visits only.
- 16 7) On 6/23/26, the Court continued the hearing to 7/21/26. Thereafter, the Court continued the
17 7/21/26 hearing to 7/23/26 on the Court's own motion.
- 18 8) On 7/13/26, Mother filed a supplemental declaration and updated Income and Expense
19 Declaration.
- 20 9) Father now requests a continuance due to his medical condition and submitted a doctor's letter
21 stating that he is available for a hearing in August. Mother objects to the continuance, in part,
22 because of her request to travel to Poland prior to the start of the school year.
- 23 10) The Court notes that neither party has filed the required Statement of Support Calculations
24 mandated by Local Rule 11.7 A.2b, and the Court is uncertain whether the Income & Expense
25 Declaration filed by Father on 4/7/26 is current.
- 26 11) The Court also notes that the request to travel was not raised in the original Request for Order,
27 but Father has had notice of the request and made no objection.

28 **B. Findings and Order**

29

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) The Court grants Father's request for a continuance of both the review hearing and Mother's Request for Order filed April 24, 2026, for good cause shown **to 8/27/26 at 9 AM in Dept. 403.**
- 3) The Court grants Mother's request to travel to Poland with Matthew Lobert (DOB 11/27/18) prior to the start of the school year. Mother is ordered to provide Father with her itinerary for airplane travel and accommodations and make Matthew available for telephone contact (including Facetime©) on at least three occasions while overseas.
- 4) Each party is ordered to file and serve current Income & Expense Declarations and Statements of Support Calculations with a proposed XSpouse printout as required by the SF Local Rules no later than 5 Court days prior to the next hearing. The parties are further ordered to exchange all documents required by Local Court Rule 11.7 A.2d. no later than 5 court days prior to the next hearing.
- 5) All outstanding issues, including spousal support and child support, are reserved until the next hearing date.
- 6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEITH JOSEPH KRACH,	)	Case Number: FDI-24-799139
Petitioner	)	Hearing Date: July 23, 2026
VS.	)	Hearing Time: 9:00 AM
METTA GROKENBERGER KRACH,	)	Department: 403
Respondent	)	Presiding: VISITING JUDGE JANET FRANGIE

REQUEST FOR ORDER RE: MOTION TO QUASH SUBPOENA/PROTECTIVE ORDER

TENTATIVE RULING

The 7/23/26 hearing on Respondent’s Request for Order filed 2/23/26 was vacated by Stipulation and Order filed 7/15/26. No appearances are required on 7/23/26.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTINA LYNN NOONEY,

Petitioner

VS.

MICHAEL JOSEPH NOONEY,

Respondent

) Case Number: FDI-25-800824

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: VISITING JUDGE JANET FRANGIE

REQUEST FOR ORDER TEMPORARY EMERGENCY ORDER, EX PARTE REQUEST FOR ORDER
PROHIBITING TRANSFERS TO 3D PARTIES, COMPLIANCES WITH ATROS AND OST ON
REQUESTS TO DEPOSIT INCOME TO BLOCKED ACCOUNT, EQUALIZE CASH AND OTHER
ORDERS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Christina Lynn Nooney and Respondent Michael Joseph Nooney. They share three adult children.
- 2) On 1/16/25, Petitioner filed a Petition for Legal Separation indicating the date of marriage is 8/10/96 and date of separation is "TBD."
- 3) On 5/9/25, Respondent filed a Response and Request for Legal Separation indicating the date of marriage is 8/10/96 and date of separation is 1/16/25 for a marriage of 28 years and 5 months.
- 4) On 6/5/26, Petitioner filed an ex parte Request for Order seeking emergency relief regarding Respondent's alleged violations of the Standard Family Law Restraining Orders (ATROS) and improper dissipation of community funds. Petitioner requests orders affirming the ATROS and blocking accounts, an accounting of funds, equal division of all cash in the marital estate, and

1 sanctions. Petitioner alleges Respondent breached his fiduciary duty to her by transferring
2 significant funds to third parties without her consent.

3 5) On 6/5/26, Respondent filed a Responsive Declaration in opposition to Petitioner's requests.

4 6) On 6/5/26, the Court denied Petitioner's request for emergency relief and set the matter for
5 regular hearing on 7/23/26.

6 7) On 7/10/26, Respondent filed a second Responsive Declaration in opposition to Petitioner's
7 requests. Respondent acknowledges the restrictions the ATROS inflict on transferring community
8 property and asserts there is no risk of the community estate – which he estimates is worth around
9 \$30,000,000 – not being equalized. Respondent opposes an early/partial equalization of assets.

10 8) On 7/16/26, Petitioner filed a Reply Declaration reiterating her requests. Petitioner asserts that
11 Respondent does not deny transferring significant funds (approximately \$2,400,000) out of the
12 marital estate or provide any factual basis for doing so.

13 9) On 7/16/26, Petitioner filed Reply Declaration of James M. Good, CPA.

14 10) On 7/16/26, Petitioner filed Reply Declaration of Caroline Fitzpatrick.

15 11) On 7/20/26, Respondent filed a Motion to Strike.

16 **B. Findings and Order**

17 1) As a preliminary issue the Court rules on Respondent's Motion to Strike filed 7/20/26 as follows:

- 18 a. Specific Objection No. 1: OVERRULED.
19 b. Specific Objection No. 2: SUSTAINED and stricken.
20 c. Specific Objection No. 3: SUSTAINED and stricken.
21 d. Specific Objection No. 4: SUSTAINED and stricken.

22 2) In proceeding to the merits of Petitioner's Request for Order filed 6/5/26, the Court rules as
23 follows:

24 3) Petitioner's request that Respondent or any agent of Respondent be prohibited from making any
25 asset and cash transfers (including donations) or paying the expenses of any third parties without
26 Petitioner's advance written consent is GRANTED. Without Petitioner's advance written consent,
27 Respondent or any agent of Respondent is restrained from making any cash transfers (including
28 donations) or paying the expenses of third parties, including, but not limited to: Sereene Badra,
29

Vanessa Cornachhioli, Madison Arroyo, John Dendrenelis, Chris Mess, DeSmet Jesuit High School, Lisa Nooney, and Patricia Nooney.

- 4) Respondent is hereby admonished to comply with the Standard Family Law Restraining Orders (ATROS).
- 5) Petitioner's request that all income distributions from Simpson Thacher & Bartlett (STB Law) be placed into a new blocked, joint account is DENIED.
- 6) Petitioner's requests that Respondent be ordered to provide Petitioner with all documentation received by STB Law, monthly account statements for all investment and retirement accounts, and an accounting of funds for each transfer identified in Exhibit A to Attachment 9 of her 6/5/26 Request for Order are DENIED without prejudice; Petitioner may conduct discovery.
- 7) Petitioner's request for equal division of all cash in the marital estate is DENIED without prejudice as division of the marital estate is a trial issue.
- 8) Respondent is prohibited from the use of cash outside the scope permitted by the ATROs, including cash in the following accounts:
 - a. Chase #1150;
 - b. Chase #5126;
 - c. Wells Fargo #0172; and
 - d. Wells Fargo #5555.
- 9) Petitioner's request for exclusive use of Wells Fargo account #5555 and related orders including tax liabilities is DENIED without prejudice as characterization and division of the marital estate is a trial issue.
- 10) Petitioner's request regarding characterization of funds transferred by Respondent is similarly DENIED without prejudice as characterization and division of the marital estate is a trial issue.
- 11) The Court hereby orders the accounts listed below blocked as to both parties. Neither party is permitted to transfer or withdraw funds from any of the following accounts, without advance written consent from both parties or further order of court:
 - a. Fidelity #8759;
 - b. Fidelity #5676;
 - c. Fidelity #7519;

- d. Fidelity IRA #2013;
- e. Ameriprise #9133;
- f. Charles Schwab #2627; and
- g. Citibank #3284

12) The Court reserves jurisdiction over Petitioner's request for \$25,000 in sanctions under Family Code sections 1100, 2040, and 271.

13) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NOREEN DOSAYLA,

Petitioner

VS.

EDGARDO DOSAYLA JR.,

Respondent

) Case Number: FDI-26-803190

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: VISITING JUDGE JANET FRANGIE

REQUEST FOR ORDER: REINSTATEMENT OF PETITIONER SPOUSE HEALTHCARE
INSURANCE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Noreen Dosayla and Respondent Edgardo Dosayla Jr.
- 2) On 6/22/26, Petitioner filed a Request for Order seeking reinstatement of health insurance coverage.
- 3) There is no Proof of Service on file indicating Respondent was served with the Request for Order.
- 4) Respondent did not file a Responsive Declaration.

B. Findings and Order

- 1) The Court finds that Petitioner's 6/22/26 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) As such, this matter is **continued to 9/15/26 at 9 AM in Dept. 403.**
- 3) At least 16 Court days prior to the next hearing date, Petitioner shall serve on Respondent the (a) 6/22/26 Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.

1 4) At least 9 Court days prior to the next hearing date, Respondent may file a Responsive
2 Declaration.

3 5) At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply
4 Declaration.

5 6) The Court will prepare the Findings and Order After Hearing.
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANGELICA FIERRO,

Petitioner

VS.

WILLIAM THOMAS WHITEBONE,

Respondent

) Case Number: FDV-19-814812

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: VISITING JUDGE JANET FRANGIE

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On August 16, 2019, Petitioner Mother filed an application for a domestic violence restraining order against Respondent Father. Father opposed the application and on August 12, 2020, a permanent restraining Order was entered against Father, with a termination date of August 6, 2025.
- 2) A paternity judgment was entered on June 24, 2020, concerning the minor child, Cecil B. Whitebone (DOB 05/05/2013). The parties were awarded joint legal and physical custody.
- 3) On September 25, 2025, Father filed an application for a domestic violence restraining order against Mother. The Court entered a Temporary Restraining Order on September 25, 2025. On November 26, 2025, the Court denied Father's request but entered an Order awarding parenting time to Father from Friday pick up after school to Monday drop off school; alternating every other week commencing 12/5/25; if no school, pick up exchange is at Fillmore police station at 10 am; if no school, Monday drop off at police station at 8 am; starting Saturday 11/29/25 and alternating every Saturday Father to have Cecil from 10-4 pm.

- 1 4) On April 29, 2026, Father filed a Request for Order seeking to modify child custody and
2 visitation and requested joint legal and joint physical custody every weekend from Friday after
3 school until Monday before school. Father alleges Mother interferes with the parenting schedule,
4 keeping Cecil home on his Friday pick up date. Father further alleges Cecil is truant from school
5 and Father wants access to school records.
- 6 5) On June 5, 2026, Mother filed a declaration, which was wholly inadequate. Rather than respond
7 to Father's allegations, Mother attached undated (and perhaps stale) text messages, a photo of
8 herself and outdated information which she previously provided to the Court in prior proceedings.
9 Mother fails to establish by admissible evidence her allegations against Father.
- 10 6) Both parties appeared for mediation on July 9, 2026, but it does not appear that any agreement
11 was reached.

12 **B. Findings and Order**

- 13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child(ren) is the United States.
- 17 2) The Court declines to change the legal or physical custody order. Father has not rebutted the
18 presumption of Family Code section 3044, which provides that an award of sole or joint physical
19 or legal custody of a child to a person who has perpetrated domestic violence is detrimental to the
20 best interest of the child.
- 21 3) Notwithstanding the above, Father is entitled to access Cecil's medical and school records and the
22 Court orders this access. Furthermore, there is no order prohibiting Father from going to Cecil's
23 school or attending events there.
- 24 4) The Court finds that neither party has been civil to the other with respect to the best interests of
25 their child. The Court orders the parties to attend and complete a co-parenting class and enroll in
26 such and provide proof of completion to the Court within thirty days.
- 27 5) The Court further finds that Mother is and has interfered with Father's time with Cecil.
- 28 6) The parties are ordered to communicate with each other via the OurFamilyWizard application.

1 7) The parenting time schedule will remain as previously ordered, except that if Cecil is not at
2 school on one of the days Father is to pick him up then the exchange shall be at the Fillmore
3 Police Station at 2:00 p.m.

4 8) The Court sets a **review hearing on 11/24/26 at 9 AM in Dept. 403.** Supplemental Declarations
5 are ordered filed and served no later than ten court days prior to the hearing.

6 9) The Court will prepare the Findings and Order after Hearing.
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTONIA ANN PENA,

Petitioner

VS.

JORGE LUIS PENA, SR.,

Respondent

) Case Number: FDI-86-855206

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: VISITING JUDGE JANET FRANGIE

REQUEST FOR ORDER RE: PROPERTY CONTROL, POSTHUMOUS ENTRY OF PRE-
APPROVED QDRO

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Antonia Ann Martinez (hereafter “Martinez”) and Jorge Luis Peña, Sr. (hereafter “Peña”).
- 2) On 5/13/88, the Court entered Dissolution Judgment incorporating a Marital Settlement Agreement, which provides for, in pertinent part, Martinez to receive one half of Peña’s pension plan.
- 3) On 6/11/26, Martinez filed a Request for Order seeking to enforce the terms of the Dissolution Judgment dividing Martinez’s pension benefit. Martinez states Peña, who remarried, passed away on 1/15/25. Martinez attaches a letter from the pension plan administrator and a proposed QDRO to her Request for Order. Martinez asserts that the plan administrator has approved the QDRO and confirmed that her interest is not being paid to the surviving spouse.
- 4) There is no Proof of Service of the Request for Order on file.

B. Findings and Order

- 1) The Court recognizes that Martinez has a valid claim to the interest in Peña's pension benefits awarded to her in the Dissolution Judgment entered 5/13/88. (Cal. Prac. Guide: Family Law (The Rutter Group 2024) ¶ 8:1189.1.)
- 2) However, the Court also recognizes that it is undisputed that Peña remarried. Thus, surviving spouse benefits may be payable to Peña's new spouse, who was not noticed of this hearing.
- 3) The Court therefore finds good cause to **CONTINUE the hearing to 8/27/26 at 9 AM in Dept. 403** for Martinez to notice Peña's surviving spouse.
- 4) At least 16 Court days prior to the next hearing date, Martinez shall serve on Peña's surviving spouse the (a) 6/11/26 Request for Order, (b) Continuance Order contained herein, (c) a Blank Responsive Declaration; and (d) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.
- 5) The Court will prepare the Findings and Order After Hearing.